

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rachel Ellman	Team: Squad #8	CCRB Case #: 201709884	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 11/20/2017 12:45 PM	Location of Incident: 263 Tompkins Avenue (79th Pct. Stationhouse)	Precinct: 79	18 Mo. SOL 5/20/2019	EO SOL 5/20/2019	
Date/Time CV Reported Mon, 11/20/2017 2:56 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/29/2017 10:48 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Alex Morocho	5420	939794	079 PCT
2. POM Daniel Palminteri	21071	963195	079 PCT
3. POF Bermaly Nunez	13724	939796	079 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Rei	22648	962718	079 PCT
2. DTS Michael Pinkney	03338	916445	079 PCT
3. POM Guillermo Militano	07978	954133	079 PCT
4. DT3 Janet Dorta	6662	938390	079 DET
5. POM Kennard Budhram	24316	962274	079 PCT
6. SGT Ryan Madhoo	5404	937001	079 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Alex Morocho	Abuse: Sergeant Alex Morocho refused to provide his name to § 87(2)(b)	
B.POM Daniel Palminteri	Abuse: Police Officer Daniel Palminteri refused to provide his name to § 87(2)(b)	
C.SGT Alex Morocho	Discourtesy: Sergeant Alex Morocho acted discourteously toward § 87(2)(b)	
D.SGT Alex Morocho	Force: Sergeant Alex Morocho used physical force against § 87(2)(b)	
E.POM Daniel Palminteri	Abuse: Police Officer Daniel Palminteri interfered with § 87(2)(b)'s use of a recording device.	
F.POM Daniel Palminteri	Force: Police Officer Daniel Palminteri used physical force against § 87(2)(b)	
G.POF Bermaly Nunez	Abuse: Police Officer Bermaly Nunez refused to provide her name to § 87(2)(b)	

Case Summary

On November 20, 2017 at approximately 12:45 p.m., § 87(2)(b) and his wife, § 87(2)(b) went to the 79th Precinct stationhouse to inquire about a dispute involving § 87(2)(b)

§ 87(2)(b) explained the situation to PO Daniel Palminteri and Det. Michael Pinkney, both of the 79th Precinct, who stated they were unable to help § 87(2)(b) because her arrest had been voided. § 87(2)(b) later entered into the stationhouse to assist § 87(2)(b). § 87(2)(b) approached Sgt. Alex Morocho, of the 79th Precinct, PO Palminteri, and Det. Pinkney and explained the situation, to no avail. § 87(2)(b) allegedly asked Sgt. Morocho and PO Palminteri for their names and shield numbers on numerous occasions, but both officers refused to provide their names. (**Allegations A, B—Abuse of Authority: Refusal to provide name and/or shield,** § 87(2)(g) § 87(2)(b) took out his cell phone and began to call IAB. Once someone answered at IAB, Sgt. Morocho told § 87(2)(b) that he was not permitted to make phone calls inside the stationhouse and tried to grab his phone. (**Allegation C—Discourtesy: Action,** § 87(2)(g) Per what appeared to be Sgt. Morocho’s instruction, officers then lifted § 87(2)(b) off the ground and carried him out of the stationhouse. (**Allegation D—Force: Dragged,** § 87(2)(g))

As officers were carrying § 87(2)(b) out of the stationhouse, § 87(2)(b) tried to record the incident on both her phone and § 87(2)(b)’s phone. Both times, PO Palminteri attempted to grab § 87(2)(b)’s phones, but was unable to do so. (**Allegation E—Abuse of Authority: Interference with recording device,** § 87(2)(g) PO Palminteri then grabbed § 87(2)(b) by the arm and pulled her out of the stationhouse. (**Allegation F—Force: Dragged,** § 87(2)(g)

PO Bermaly Nunez, of the 79th Precinct, stood in front of § 87(2)(b) in the stationhouse’s vestibule and continuously prodded her out the door. § 87(2)(b) repeatedly asked PO Nunez for her name and badge number, to which Det. Pinkney told § 87(2)(b) that she had no need for PO Nunez’s name and shield because she had his name and shield. § 87(2)(b) responded and stated that she wanted PO Nunez’s name specifically, a request PO Nunez did not acknowledge. (**Allegation G—Abuse of Authority: Refusal to provide name,** § 87(2)(g)

Allegation G was captured on video recorded by § 87(2)(b). The video shows § 87(2)(b) asking PO Nunez for her name no less than three times, to which PO Nunez responds, “You can go.” (Board Review 01, IA22 [video], IA38 [transcription])

Findings and Recommendations

Allegation A—Abuse of Authority: Sergeant Alex Morocho refused to provide his name to § 87(2)(b)

Allegation B—Abuse of Authority: Police Officer Daniel Palminteri refused to provide his name to § 87(2)(b)

§ 87(2)(b) told IAB he interacted with seven officers, one of whom did not provide his name. § 87(2)(b) identified Det. Pinkney as the officer who failed to file a report for him, and identified PO Rei, PO Budram, and PO Militano as present. § 87(2)(b) said there was a “PO Mor” with shield #5420. (Board Review 02)

§ 87(2)(b) said he repeatedly asked for names and badge numbers while inside the stationhouse, and all but two officers obliged. § 87(2)(b) described the first officer as a young, white, male with a short haircut with a high fade, and the second as a short, possibly South Asian, male in his forties with balding black hair. The former description applies to PO Palminteri, and the latter Sgt. Morocho. Further, § 87(2)(b) described the first officer as the one with whom he initially spoke upon entry into the stationhouse, which accords with PO Palminteri's assignment, and the second as the officer who self-identified as a supervisor, which accords with Sgt. Morocho's assignment. (Board Review 03)

§ 87(2)(b) was seated when § 87(2)(b) asked the officers for their names and badge numbers. She heard § 87(2)(b) tell the officers he wanted their names because no one was helping him. § 87(2)(b) recalled PO Militano providing his name and saying, "Get it right," and believed Det. Pinkney provided his name. § 87(2)(b) had no other knowledge of § 87(2)(b)'s inquiries for identifying information. (Board Review 04)

Sgt. Morocho recalled § 87(2)(b) coming into the station house screaming things to the effect of, "Don't talk to cops, they're corrupt." Sgt. Morocho asked § 87(2)(b) and § 87(2)(b) to calm down and told them their screaming was disturbing the stationhouse. Sgt. Morocho warned § 87(2)(b) numerous times that he would be asked to leave the stationhouse if he did not quiet down. § 87(2)(b) never asked Sgt. Morocho for his name or badge number, nor did Sgt. Morocho hear § 87(2)(b) ask anyone else for identifying information. (Board Review 05)

PO Palminteri stated § 87(2)(b) came screaming into the stationhouse, saying officers were corrupt and he needed to speak with a "Captain." PO Palminteri approached § 87(2)(b) and tried to talk to him, but § 87(2)(b) would not tell PO Palminteri his grievance. PO Palminteri told § 87(2)(b) no captains were working at the time, but that he would get his supervisor. PO Palminteri brought Sgt. Morocho into the lobby. § 87(2)(b) again called the officers corrupt, and said he wanted to speak with someone higher ranking. Sgt. Morocho tried, but was also unable, to have a conversation with § 87(2)(b) about what brought him into the stationhouse. Sgt. Morocho returned to his desk, leaving PO Palminteri with § 87(2)(b). PO Palminteri told § 87(2)(b) he would be asked to leave the stationhouse for being disruptive if he continued to scream. PO Palminteri did not recall § 87(2)(b) having a notebook or writing anything down, did not recall either § 87(2)(b) or § 87(2)(b) asking for anyone's name or badge number, and said no one asked him for his name or badge number. (Board Review 06)

Det. Pinkney had no independent recollection of this incident, including the request for name and shield. (Board Review 07) PO Nunez did not recall hearing § 87(2)(b) ask for anyone's name or badge number. (Board Review 08)

Per NYPD Patrol Guide Procedure 203-09, Public Contact – General, officers are to "Courteously and clearly state [their] rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so. (Board Review 14)

§ 87(2)(g)
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Allegation C—Discourtesy: Sergeant Alex Morocho acted discourteously toward § 87(2)(b)

Allegation D—Force: Sergeant Alex Morocho used physical force against § 87(2)(b)

Allegation E—Abuse of Authority: Police Officer Daniel Palminteri interfered with § 87(2)(b)
s use of a recording device.

Allegation F—Force: Police Officer Daniel Palminteri used physical force against § 87(2)(b)

§ 87(2)(b) came inside the stationhouse to help § 87(2)(b) file a report against her ex-girlfriend, noting that the matter is difficult for § 87(2)(b) emotionally. § 87(2)(b) was distraught when he came inside. § 87(2)(b) approached PO Palminteri and Sgt. Morocho and introduced himself. He told the officers his wife was trying to file a complaint, and they responded that they could not be of assistance, as § 87(2)(b)'s arrest was voided. § 87(2)(b) asked officers to search for records involving § 87(2)(b) but no one was willing to do so. § 87(2)(b) told Sgt. Morocho he was frustrated with the lack of help, and, after approximately 20 minutes inside the stationhouse, § 87(2)(b) called IAB. § 87(2)(b) was placed on hold and waited with the phone on speaker mode. Officers paid § 87(2)(b) no mind while he was waiting on hold. Approximately ten minutes later, however, someone from IAB answered the phone on the other side of the line and Sgt. Morocho suddenly told § 87(2)(b) he could not make a call inside the stationhouse and lunged for his phone. § 87(2)(b) had not previously been told to get off the phone, nor was he given the opportunity to take his phone call outside. § 87(2)(b) retracted his hand and retained possession of his phone. Then, per Sgt. Morocho's instruction, PO Rei and PO Budram, assigned to stationhouse security, approached § 87(2)(b) grabbed him by the arms, and pulled him toward the exit. The officers then lifted § 87(2)(b) so that no part of his body was touching the floor and then left him on the sidewalk (Board Review 03)

Note, no audio could be obtained for the IAB call § 87(2)(b) alleges Sgt. Morocho interrupted. The lone IAB audio available is from § 87(2)(b)'s second call, after he was removed from the stationhouse.

§ 87(2)(b) remembered § 87(2)(b) taking his cell phone out of his pocket after a back-and-forth with officers. After § 87(2)(b) took his phone out, an officer said "Let's get him out of here," and officers converged on § 87(2)(b). § 87(2)(b) handed his phone to § 87(2)(b) who was seated. PO Palminteri tried to grab and wrangle the phone away from § 87(2)(b). PO Palminteri grabbed hold of § 87(2)(b)'s arm, but she was able to place the phone under her leg. § 87(2)(b) then took out her own cell phone to try to record, and PO Palminteri again tried to take it from her. Ultimately, § 87(2)(b) was unable to record. As this was happening, § 87(2)(b) saw § 87(2)(b) raised off the ground as officers were trying to remove him from the stationhouse. PO Palminteri then grabbed § 87(2)(b) by the arm and pulled her approximately ten feet to the exit of the stationhouse. § 87(2)(b) did not recall PO Palminteri saying anything at this time. (Board Review 04)

Sgt. Morocho remembered coming out from behind the glass partition to escort § 87(2)(b) and § 87(2)(b) out of the stationhouse. § 87(2)(b) and § 87(2)(b) were asked to leave because they

continued to scream and walked out of the stationhouse without any physical contact from any police officers. Sgt. Morocho did not see any officers lift § 87(2)(b) off the ground, and did not instruct any officers to forcefully remove § 87(2)(b) from the stationhouse. Sgt. Morocho walked § 87(2)(b) and § 87(2)(b) to the stationhouse vestibule, and then returned to his desk. Sgt. Morocho did not recall § 87(2)(b) being on the phone, trying to record something, or saying he was going to call IAB. Sgt. Morocho did not recall § 87(2)(b) ever indicating he wanted to file a complaint against officers. (Board Review 05)

PO Palminteri gave § 87(2)(b) and § 87(2)(b) numerous warnings that they would have to leave the stationhouse if they continued to scream. Per Sgt. Morocho's direction, PO Palminteri grabbed hold of § 87(2)(b) by the arm and walked with him out of the stationhouse. § 87(2)(b) was not entirely cooperative and, at times, unwilling to move his legs. However, PO Palminteri said he never lifted § 87(2)(b) off the ground, and said § 87(2)(b) was not uncooperative such that he needed to be lifted. PO Palminteri walked § 87(2)(b) to the steps near the exit of the stationhouse, and then returned inside. PO Palminteri had no recollection of § 87(2)(b) being on his phone, being on speaker phone, or calling IAB. However, PO Palminteri did recall § 87(2)(b) saying he was going to call Internal Affairs. PO Palminteri could not recall what was happening with § 87(2)(b) at this time, and could not recall how she ultimately exited the stationhouse. PO Palminteri did not recall speaking with § 87(2)(b) after escorting § 87(2)(b) out, and did not remember any physical encounter with § 87(2)(b). PO Palminteri remembered § 87(2)(b) passing his phone to § 87(2)(b) and imploring her to record before he was removed from the stationhouse, but PO Palminteri could not recall what came of § 87(2)(b) phone. PO Palminteri did not recall § 87(2)(b) having multiple phones, but said she "might have," at some point, had a phone raised so as to record. However, PO Palminteri denied ever obstructing § 87(2)(b)'s filming. (Board Review 06)

§ 87(2)(g)

Allegation G—Abuse of Authority: Police Officer Bermaly Nunez refused to provide her name to

§ 87(2)(b)

This segment follows § 87(2)(b) and § 87(2)(b)'s removal from the stationhouse. When § 87(2)(b) attempts to walk back into the stationhouse, PO Nunez says, "Ma'am, you are not allowed to come back in here." § 87(2)(b) asks PO Nunez for her name. In response, PO Nunez says, "Ma'am, you can go." [0:14] Det. Pinkney is heard in the background saying, "You have mine," to which § 87(2)(b) says, "I don't want your (Det. Pinkney) name, I want *your* (PO Nunez) name." [0:22] § 87(2)(b) asks PO Nunez for her name a third time, to which PO Nunez responds, "You can go...You're making it worse for yourself." [0:34] PO Nunez nudges § 87(2)(b) out of the vestibule onto the sidewalk outside the stationhouse.



Allegation G.mp4

PO Nunez was presented with the above video. PO Nunez acknowledged that the video shows § 87(2)(b) asking for her name and shield. PO Nunez could not provide an explanation as to why she did not give her name and/or shield number to § 87(2)(b). PO Nunez said, “I’ve been on the job twelve and a half years, you ask for it. I give it. I have no reason not to give it to somebody...maybe I’m so focused on getting her out, I didn’t hear it?”

Per NYPD Patrol Guide Procedure 203-09, Public Contact – General, officers are to “Courteously and clearly state [their] rank, name, shield number and command, or otherwise provide them, to anyone who requests you to do so.” (Board Review 07)

§ 87(2)(g)

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Civilian and Officer CCRB Histories

- This is the first CCRB complaint each for § 87(2)(b) and § 87(2)(b) (Board Review 08)
- Sgt. Morocho has been a member of service for 12 years and has been a subject in one CCRB complaint for three allegations, none of which were substantiated. § 87(2)(g) _____
- PO Palminteri has been a member of service for one year, and this is his first CCRB complaint. (Board Review 10)
- PO Nunez has been a member of service for 12 years, and has been a subject of one CCRB complaint for one allegation, which was unsubstantiated. (Board Review 11)

Mediation, Civil and Criminal Histories

- On May 19, 2018 this case was sent to mediation and on May 21, 2018, the case was returned to investigation because officers declined to mediate.
- As of June 20, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint. (Board Review 12)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] _____

Squad No.: 8

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

